

Amendment No. 1 to SB0731

Briggs  
Signature of Sponsor

**AMEND Senate Bill No. 731\***

**House Bill No. 795**

by deleting § 7-70-101(6) in Section 1 and substituting:

(6) "Nonessential infrastructure":

(A) Means any infrastructure that is not necessary for the creation, ongoing maintenance, and growth of a development property;

(B) Includes public roads, bridges, highways, traffic lights, toll roads, road signage, barricades, turn lanes, utility poles, electrical lines, internet cabling, public entrances that are not part of a development property, and property that is not contiguous or adjacent to the development property; and

(C) Does not include any infrastructure requested by the department of transportation or another public agency that, based on the findings of a traffic impact study, is identified as necessary to maintain the level of service on any state routes or local street in the vicinity of a development property; and